

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
JOINT
3 RESOLUTION NO. 1067 By: Eaves and Lepak of the
House
4
and
5
Daniels of the Senate
6
7

8 A Joint Resolution directing the Secretary of State
to refer to the people for their approval or
9 rejection a proposed amendment to Section 2 of
Article XXV-A of the Constitution of the State of
10 Oklahoma; allowing the State of Oklahoma not cover
Medicaid expansion if federal financial participation
11 drops below ninety-percent matching; providing for
contingency based upon certain voting outcome;
12 ordering a legislative referendum; providing for
contingency based on federal Medicaid; ordering a
13 special election; providing ballot title; and
directing filing.
14
15

16 AMENDMENT NO. 1. Page 1, strike the title, resolving clause and
entire resolution and insert
17

18 "A Joint Resolution directing the Secretary of State
to refer to the people for their approval or
19 rejection a proposed amendment to Section 2 of
Article XXV-A of the Oklahoma Constitution;
20 terminating effect of Medicaid expansion coverage
mandate under specified condition; providing certain
21 construction; providing for conditional effect;
providing ballot title; and directing filing.
22
23
24

1 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

3 SECTION 1. The Secretary of State shall refer to the people for
4 their approval or rejection, as and in the manner provided by law,
5 the following proposed amendment to Section 2 of Article XXV-A of
6 the Oklahoma Constitution to read as follows:

7 Section 2. A. In addition to those otherwise eligible for
8 medical assistance under Oklahoma's Medicaid program, the State
9 shall, until the conditions described in subsection C of this
10 section occur, provide medical assistance under Oklahoma's Medicaid
11 program to Low Income Adults.

12 B. No greater or additional burdens or restrictions on
13 eligibility or enrollment shall be imposed on persons eligible for
14 medical assistance pursuant to this Article than on any other
15 population eligible for medical assistance under Oklahoma's Medicaid
16 program.

17 C. If the federal medical assistance percentage (FMAP)
18 established under 42 U.S.C., Section 1396d(y) is reduced below
19 ninety percent (90%), then the duty imposed on the State by
20 subsection A of this section shall cease to have effect,
21 notwithstanding any subsequent increases to such FMAP; provided,
22 however, this subsection shall not be construed to prohibit the
23 Legislature from enacting laws to provide Medicaid coverage to Low
24 Income Adults.

1 SECTION 2. The proposed Constitutional amendment as set forth
2 in SECTION 1 of this resolution shall not become effective if the
3 State Question resulting from Enrolled House Bill No. 4440 of the
4 2nd Session of the 60th Oklahoma Legislature is approved by the
5 people, as certified by the Secretary of State.

6 SECTION 3. The Ballot Title for the proposed Constitutional
7 amendment as set forth in SECTION 1 of this resolution shall be in
8 the following form:

9 BALLOT TITLE

10 Legislative Referendum No. _____ State Question No. _____

11 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

12 This measure amends the Oklahoma Constitution. It amends
13 Section 2 of Article 25-A to state that if the federal medical
14 assistance percentage (FMAP) for Medicaid expansion drops below
15 ninety percent, then the State's constitutional duty to cover
16 Low Income Adults under Oklahoma's Medicaid program will end,
17 regardless of any later increases to the FMAP. It clarifies
18 that this measure does not prohibit the Legislature from passing
19 laws to provide Medicaid coverage to Low Income Adults. This
20 measure states that if the State Question resulting from
21 Enrolled House Bill No. 4440 of the 2nd Session of the 60th
22 Oklahoma Legislature is approved by the people, then this
23 Constitutional amendment shall not become effective.

24 SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES _____

AGAINST THE PROPOSAL — NO _____

SECTION 4. The Chief Clerk of the House of Representatives,
immediately after the passage of this measure, shall prepare and
file one copy thereof, including the Ballot Title set forth in
SECTION 3 hereof, with the Secretary of State and one copy with the
Attorney General."

Passed the Senate the 14th day of April, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives

1 ENGROSSED HOUSE
JOINT

2 RESOLUTION NO. 1067

By: Eaves and Lepak of the
House

3
4 and

Daniels of the Senate
5
6

7 A Joint Resolution directing the Secretary of State
to refer to the people for their approval or
8 rejection a proposed amendment to Section 2 of
Article XXV-A of the Constitution of the State of
9 Oklahoma; allowing the State of Oklahoma not cover
Medicaid expansion if federal financial participation
10 drops below ninety-percent matching; providing for
contingency based upon certain voting outcome;
11 ordering a legislative referendum; providing for
contingency based on federal Medicaid; ordering a
12 special election; providing ballot title; and
directing filing.
13
14

15 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
16 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

17 SECTION 5. The Secretary of State shall refer to the people for
18 their approval or rejection, as and in the manner provided by law,
19 the following proposed amendment to Section 2 of Article XXV-A of
20 the Constitution of the State of Oklahoma to read as follows:

21 Section 2. A. In addition to those otherwise eligible for
22 medical assistance under Oklahoma's Medicaid program, the State
23 shall provide medical assistance under Oklahoma's Medicaid program
24 to Low Income Adults.

1 B. No greater or additional burdens or restrictions on
2 eligibility or enrollment shall be imposed on persons eligible for
3 medical assistance pursuant to this Article than on any other
4 population eligible for medical assistance under Oklahoma's Medicaid
5 program.

6 C. If the federal financial participation is less than ninety
7 percent (90%) for Medicaid expansion, the Oklahoma Legislature may
8 decide to not cover the additional costs to the state.

9 D. If the State Question contained in Enrolled House Bill No.
10 4440 of the 2nd Session of the 60th Oklahoma Legislature is approved
11 by the people, the provisions of this section shall not become
12 operative as law.

13 SECTION 6. Pursuant to Section 3 of Article V of the Oklahoma
14 Constitution, there is hereby ordered the following legislative
15 referendum which shall be filed with the Secretary of State and
16 addressed to the Governor of the state, who shall submit the same to
17 the people for their approval or rejection at the election to be
18 conducted on August 25, 2026.

19 SECTION 7. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 7402 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 A. In addition to those otherwise eligible for medical
23 assistance under Oklahoma's Medicaid program, the State shall
24

1 provide medical assistance under Oklahoma's Medicaid program to Low
2 Income Adults.

3 B. No greater or additional burdens or restrictions on
4 eligibility or enrollment shall be imposed on persons eligible for
5 medical assistance pursuant to this Article than on any other
6 population eligible for medical assistance under Oklahoma's Medicaid
7 program.

8 C. If the federal financial participation is less than ninety
9 percent (90%) for Medicaid expansion, the Oklahoma Legislature may
10 decide to not cover the additional costs to the state.

11 SECTION 8. The Ballot Title for the proposed Constitutional
12 amendment as set forth in SECTION 1 of this resolution and the
13 statutory enactment contained in Section 3 of this measure shall be
14 in the following form:

15 BALLOT TITLE

16 Legislative Referendum No. _____ State Question No. _____

17 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

18 This measure amends the Oklahoma Constitution. The measure
19 amends Section 2 of Article 25A by allowing the State of
20 Oklahoma to not cover the Medicaid expansion if the federal
21 financial participation drops below ninety percent (90%)
22 matching. If another State Question contained in Enrolled House
23 Bill No. 4440 of the 2nd Session of the 60th Oklahoma
24 Legislature becomes the law, this change in the Constitution

1 would not become the law. This measure would also enact a
2 statute that is almost identical in wording to Section 2 of
3 Article XXV-A of the Oklahoma Constitution. This section
4 relates to Medicaid coverage. It would allow the Legislature to
5 make a choice about state Medicaid funding based on changes in
6 Medicaid made at the federal level.

7 SHALL THE PROPOSAL BE APPROVED?

8 FOR THE PROPOSAL — YES _____

9 AGAINST THE PROPOSAL — NO _____

10 SECTION 9. A special election is hereby ordered to be held
11 throughout the State of Oklahoma on the date of August 25, 2026, at
12 which time the proposed amendment to the Constitution of the State
13 of Oklahoma, as set forth in SECTION 1 of this measure, shall be
14 submitted to the people of Oklahoma for their approval or rejection
15 as and in the manner provided by law.

16 SECTION 10. The Chief Clerk of the House of Representatives,
17 immediately after the passage of this measure, shall prepare and
18 file one copy thereof, including the Ballot Title set forth in
19 SECTION 4 hereof, with the Secretary of State and one copy with the
20 Attorney General.

1 Passed the House of Representatives the 25th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate